

ELIZABETH II



1963 CHAPTER vii

An Act to repeal or amend certain enactments relating to the powers of the mayor, aldermen and burgesses of the county borough of Sunderland to advance money on loan to the River Wear Commissioners and guarantee repayment of and the payment of interest upon money borrowed or to be borrowed by the said commissioners, and of borrowing in respect thereof; and for other purposes. [15th May 1963]

WHEREAS—

(1) The borough of Sunderland (hereinafter referred to as “the borough”) is a county borough under the local government and management of the mayor, aldermen, and burgesses of the borough (hereinafter referred to as “the Corporation”):

(2) By virtue of various Acts of Parliament the River Wear Commissioners (hereinafter referred to as “the commissioners”) are authorised to exercise certain powers for the improvement and conservancy of the river Wear and the port of Sunderland and are the owners of docks, quays, wharves, railways, works, lands and property:

(3) The consolidated revenue of the commissioners (which before the year nineteen hundred and fourteen was more than sufficient to meet all the charges thereon and the ordinary current expenditure of the commissioners and the interest on mortgages granted by them and their funded debt) subsequently became greatly diminished and therefore by the Wear Navigation and Sunderland Dock (Finance) Act, 1920 (hereinafter referred to

as "the Act of 1920") the Corporation were authorised to make up deficiencies in the revenue of the commissioners and in addition at any time to advance by way of loan to the commissioners such sums of money as the commissioners might for the time being be authorised to borrow and might be desirous of borrowing from the Corporation on such terms and conditions as might be agreed between the Corporation and the commissioners:

(4) By the Act of 1920 the Corporation were further authorised to guarantee the repayment of and the payment of interest upon money borrowed or to be borrowed by the commissioners in such manner as might be agreed between the Corporation and the commissioners with the proviso that the Corporation should not advance any such money or give any such guarantee after the year nineteen hundred and twenty-nine:

(5) By the Sunderland Corporation Act, 1927, the Sunderland Corporation Act, 1935, and the Sunderland Corporation Act, 1943, the period within which the said powers might be exercised was extended but that period will expire at the end of the year nineteen hundred and sixty-three:

(6) By the Wear Navigation and Sunderland Dock Act, 1938, the representation of the Corporation on the body of the commissioners was increased so that of the total number of thirty-seven commissioners fourteen are appointed by the Corporation and of four co-opted members two are nominated by the Corporation:

(7) The prosperity of the borough is largely dependent on the proper maintenance and operation of the port, harbour and dock works managed by the commissioners and it is expedient that the powers of the Corporation to advance money to or to guarantee the repayment of and the payment of interest upon moneys borrowed or to be borrowed by the commissioners be varied and continued as provided by this Act:

(8) It is expedient that the powers of the Corporation to borrow moneys for making advances to the commissioners or for making payments under any such guarantee as aforesaid be varied and continued as provided by this Act:

(9) It is expedient that the other provisions contained in this Act be enacted:

(10) The purposes of this Act cannot be effected without the authority of Parliament:

(11) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal,

and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Sunderland Corporation Act Short title. 1963.

2.—(1) In this Act—

Interpretation.

“the Act of 1920” means the Wear Navigation and Sunderland Dock (Finance) Act, 1920;

“the Corporation” means the mayor, aldermen and burgesses of the borough of Sunderland;

“enactment” includes an enactment in this Act or in any general or local Act.

(2) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment including this Act.

3. Subsection (3) of section 10 (Power for Corporation to lend money and guarantee loans) of the Act of 1920 is hereby repealed.

Repeal of subsection (3) of section 10 of Act of 1920.

4. The following section shall be substituted for section 11 (Power to borrow) of the Act of 1920:—

Amendment of section 11 of Act of 1920.

“Power to borrow. 11.—(1) The Corporation may borrow without the consent of any sanctioning authority, for any of the purposes specified in the first column of the following table, the sum specified in relation thereto in the second column of that table.

(1)	(2)	(3)
Purpose for which money may be borrowed	Amount	Maximum period for repayment of loan calculated from the date or dates of borrowing
(a) For making any advance to the commissioners or paying any capital sum becoming payable under any guarantee authorised by this Act	The sums requisite	A period exceeding by one year the period within which the commissioners are required to repay such advance or the loan in respect of which the guarantee is given or sixty years which ever period is the shorter.
(b) For paying any interest becoming payable under any guarantee authorised by this Act	The sum requisite	Ten years.

(2) Every sum borrowed under subsection (1) of this section shall be repaid within such period as the Corporation, without the consent of any sanctioning authority, may determine, not exceeding the period specified in relation thereto in the third column of the said table.

(3) Subject to the provisions of this section, Part IX of the Local Government Act, 1933, shall have effect as if money borrowed under this section were borrowed under that Part.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946."

Further
repeals.

5. The following enactments are hereby repealed:—

Section 12 (Application of Acts of 1899 and 1907) of the Act of 1920 except so much of that section as extends and applies section 74 (Application of section 265 of the Public Health Act, 1875) of the Sunderland Corporation Act, 1907, to and for the purposes of the Act of 1920;

Section 246 (Amendment of section 11 of Act of 1920) of the Sunderland Corporation Act 1935;

Subsection (1) of section 3 (Extension of powers of Corporation to make advances to commissioners and give guarantees &c.) of the Sunderland Corporation Act, 1943.

Costs of Act.

6.—(1) The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

(2) The Corporation shall have power without the consent of any sanctioning authority to borrow the sum requisite for the payment of the said costs, charges and expenses and shall repay all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the date of borrowing.

(3) The provisions of Part IX of the Local Government Act, 1933, so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of the money borrowed shall as respects that money be the fixed period for the purpose of the said Part IX.

Table of Statutes referred to in this Act

Short title	Session and chapter
Public Health Act 1875	38 & 39 Vict. c. 55.
Sunderland Corporation Act 1899	62 & 63 Vict. c. cxc.
Sunderland Corporation Act 1907	7 Edw. 7 c. c.
Wear Navigation and Sunderland Dock (Finance) Act 1920	10 & 11 Geo. 5 c. cxl.
Sunderland Corporation Act 1927	17 & 18 Geo. 5 c. xcvi.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Sunderland Corporation Act 1935	25 & 26 Geo. 5 c. cxxv.
Wear Navigation and Sunderland Dock Act 1938	1 & 2 Geo. 6 c. lxxxiv.
Sunderland Corporation Act 1943	6 & 7 Geo. 6 c. iv.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.

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Sunderland Corporation Act 1963

CHAPTER vii

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Repeal of subsection (3) of section 10 of Act of 1920.
4. Amendment of section 11 of Act of 1920.
5. Further repeals.
6. Costs of Act.

